

25NNCV07323 25NNCV07323

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C08%2F14%2F2026

Source SHA-256: 65bdcae18bb548850ff4ebaf77dae6f5a283f4e5414d9803c2715f69bc2d465d

Case Number: 25NNCV07323 Hearing Date: August 14, 2026 Dept: D

TENTATIVE RULING

Calendar: 1

Date: August 14, 2026

Case No: 25NNCV07323 Trial Date: Not yet set

Case Name: Ghaffari v. U.S. Bank National Association, et al.

DEMURRER

[CCP § 430.10 subds. (e) and (f)]

Moving Party: Defendants, Nationstar Mortgage LLC dba Mr. Cooper, U.S. Bank, N.A., as trustee for Merrill Lynch First Franklin Mortgage Loan Trust 2007-1, and Mortgage Electronic Registration Systems, Inc.,

Responding Party: Plaintiffs, Linda Ghaffari and Gina Ghaffari

RELIEF REQUESTED:

Sustain demurrer to First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Quiet Title

2) Wrongful Foreclosure

3) Cancellation of Instruments

4) Violation of California Homeowner Bill of Rights

5) Misrepresentation

6) Injunctive Relief

REQUEST FOR JUDICIAL NOTICE:

The Court may take judicial notice of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States” and of [f]acts and propositions that are not reasonable subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evidence Code, § 452, subds. (c) and (h).)

The court, however, may not take judicial notice of the truth of the contents of the documents. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.) Documents are only judicially noticeable to show their existence and what orders were made such that the truth of the facts and findings within the documents are not judicially noticeable. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 885.)

Pursuant to Defendants’ request, the Court takes judicial notice of the following:

1) A true and correct copy of the Deed of Trust recorded February 21, 2007, in the Official Records for the County of Los Angeles, as document no. 20070369459

2) A true and correct copy of the Corporate Assignment of Deed of Trust recorded May 21, 2013, in the Official Records for the County of Los Angeles, as document no. 20130757264

3) A true and correct copy of the Substitution of Trustee recorded on October 13, 2023, in the Official Records for the County of Los Angeles, as document no. 20230698306

4) A true and correct copy of the Corporate Assignment of Deed of Trust recorded November 22, 2023, in the Official Records for the County of Los Angeles, as document no. 20230813409.

5) A true and correct copy of the Notice of Default recorded October 18, 2023, in the Official Records for the County of Los Angeles, as document no. 20230710561.

6) A true and correct copy of the Notice of Trustee’s Sale recorded April 16, 2024, in the Official Records for the County of Los Angeles, as document no. 20240247208

7) A true and correct copy of the Notice of Trustee’s Sale recorded May 23, 2025, in the Official Records for the County of Los Angeles, as document no. 202503454292.

8) A true and correct copy of the Trustee's Deed Upon Sale recorded September 22, 2025, in the Official Records for the County of Los Angeles, as document no. 20250651964.

SUMMARY OF FACTS:

The FAC alleges that Plaintiff Linda Ghaffari ("Linda") is the owner of real property located at 9531 Via Salerno, Unit 33, Burbank, California 91504. Plaintiff Gina Ghaffari ("Gina") is Linda's daughter and resides at the property. The FAC alleges that in 2007, Linda obtained a mortgage loan secured by a Deed of Trust recorded against the property. The loan was placed into default in August 2011. Plaintiffs allege that they submitted approximately 19 loss mitigation applications between 2014 and 2024, each of which was denied or not approved. The FAC alleges that Defendants failed to provide a consistent or meaningful pathway to resolution. Defendants conducted a foreclosure auction on August 26, 2025, and a Trustee's Deed Upon Sale was recorded on September 22, 2025. Plaintiffs allege various irregularities throughout the bankruptcy, foreclosure and unlawful detainer processes and allege that the foreclosure was invalid.

ANALYSIS:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer for uncertainty lies where the pleading is uncertain, ambiguous, or unintelligible. (CCP, § 430.10, subd. (f).)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616 [disapproved on other grounds].) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading, but it rather is directed only at uncertainty existing in the allegations already made. (People v. Taliaferro (1957) 149 Cal.App.2d 822, 825, disapproved on other grounds in Jefferson v. J.E. French Co. (1960) 54 Cal.2d 717, 719-720 [statute of limitations question].)

Where a complaint is sufficient to state a cause of action and to apprise a defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643 ["A special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet"].)

Standing

Defendants demur to the entire FAC on grounds that Plaintiffs lack standing to challenge the assignment of deed of trust. The FAC alleges that Defendants did not have authority to direct or authorize foreclosure and failed to establish a complete chain

of authority demonstrating that Defendants were entitled to enforce the deed of trust. (FAC, ¶¶ 53.6, 62-65.) All of Plaintiffs' causes of action are premised on the allegation that the Defendants lacked authority to foreclose on the property. (FAC, ¶¶ 71-103.)

The FAC alleges that "[n]o Defendant has produced competent evidence establishing that the party directing the foreclosure possessed the legal right to do so." (FAC, ¶ 65.) However, there are no factual allegations supporting Plaintiff's legal conclusion that Defendants lacked authority to foreclose on the property. Moreover, the documents recorded in Los Angeles County, of which the Court took judicial notice, demonstrate Defendants' legal authority to do so. (RJN, Exs. 1-8.)

A borrower has standing to challenge the assignment of his or her note and deed of trust if the alleged defect would render the assignment void, rather than merely voidable. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 940.) Multiple California courts have held that an assignment to a trust made after the trust's closing date renders the assignment voidable, not void. (*Saterbak v. JPMorgan Chase Bank, N.A.* (2016) 245 Cal.App.4th 808, 815 ["We conclude such an assignment is merely voidable"]; *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.23, 43 "an unauthorized act by the trustee is not void but merely voidable by the beneficiary").) Because any alleged irregularity in the assignment process is merely voidable at the trust beneficiary's behest, and because Plaintiffs are not beneficiaries of the Merrill Lynch First Franklin Mortgage Loan Trust 2007-1, Plaintiffs lack standing to challenge the MERS assignment on such grounds.

In the opposition, Plaintiffs argue that Defendants improperly rely on their request for judicial notice, contending that Defendants ask the Court to take judicial notice of disputed facts and of the legal effect of the recorded documents. (Opp., p. 3:1-10.) Courts may take judicial notice of the legal effect of recorded real property records. "[C]ourts have taken judicial notice of the existence and recordation of real property records, including deeds of trust, when the authenticity of the documents is not challenged. The official act of recordation and the common use of a notary public in the execution of such documents assure their reliability, and the maintenance of the documents in the recorder's office makes their existence and text capable of ready confirmation, thereby placing such documents beyond reasonable dispute." (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal. App.4th 256, 264, disapproved of on other grounds in *Yvanova*, supra, 62 Cal.4th 919).

In *Fontenot*, the Court of Appeal conducted a detailed review of the issue with respect to recorded real property documents offered in support of a demurrer to a complaint in which it was alleged that MERS was not a beneficiary entitled to foreclose on the subject real property. The Court of Appeal found that the trial court had not erred in taking judicial notice of certain facts established by the recorded real property records, and their legal effect, concluding: "Taken together, the decisions discussed above establish that a court may take judicial notice of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face." (*Id.*, at p. 265.)

Here, there is no challenge to the authenticity of the deed of trust or the recorded assignments. Between the limited factual allegations in the FAC and the record provided by the judicially noticed materials, Plaintiffs fail to sufficiently allege that Defendants lacked authority to foreclose on the property or that there was a defective chain of title or void assignment. Accordingly, Plaintiffs have not demonstrated that they have standing to challenge the foreclosure.

Thus, the demurrer is SUSTAINED.

Although leave to amend should be freely granted, "[t]he burden is on the plaintiff to demonstrate the manner in which the complaint can be amended. (*Ross v. Creel Printing & Publishing Company* (2002) 100 Cal.App.4th 736, 748.) "To carry its burden, plaintiff must show the manner it can amend its complaint and demonstrate how that amendment will change the legal effect of the pleading." (*Community Assisting Recovery, Inc. v. Aegis Security Insurance Co.* (2001) 92 Cal. App. 4th 886, 895, citation omitted.)

Plaintiffs have not demonstrated how their lack of standing could be cured through further amendment. The Court previously sustained Defendants' demurrer to the Complaint on these same grounds, and afforded Plaintiffs an opportunity to amend.

(3/13/2026 Minute Order ["In any amended pleading, Plaintiff will be strictly required to allege facts demonstrating that she has standing to bring this action."].) However, the amended complaint does not cure the standing deficiency.

Accordingly, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

RULING:

Defendants Nationstar, U.S. Bank, and MERS's Demurrer is SUSTAINED, WITHOUT LEAVE TO AMEND.

Counsel for moving party is ordered to prepare a Judgment of Dismissal as to the moving parties and submit it on eCourt by 2:00 PM today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.